

Westhampton Board of Health
Minutes to July 6th, 2017 Meeting
Present: Tom Martin, David Blakesley
Call to Order: 4:00
Adjourned:

- 1) Board approved minutes to June 1st, 2017 meeting.
- 2) Board notes our health agent was unable to attend today and so many updates on agenda items need to await his presence. These items on hold are status updates on Outlook Farm Brewery Septic, 225 NW Rd. solid waste issues, HRHS public water source issues, Letter for Title V inspections for KOA campground, housing complaint at 335 NW Rd., other updates via the Foothills Health District. Board notes that Ron has been overscheduled since going on vacation.
- 3) Allison Smith for Grinning Dog Kennel in with verifications of materials that have been recorded at the Registry of Deeds. Board reminds her that we want the septic construction Certificate of Compliance also recorded on the deed. She has her permit to construct and plans to move to the Planning Board for her special permit for the business.
- 4) Board did take a minute to review housing complaint at 335 NW Rd. Tim Fondakowski is the owner of this property, which is reported to have a big garage on the property. Board notes that the Westhampton Assessors have been told by the owner that he does not live in this garage structure, but rather with his father at another address in town. Board notes that no septic system documents exist in our files for this property and so living in the garage structure would not be allowed. Tom to send an email to health asking for an inspection of the property.
- 5) David to follow-up on status of Auto Salvage yard enforcement order generated by the Selectboard and report to the Board.
- 6) Board discusses notes generated for the Zoning By-Law Review Committee, which is reviewing them and will schedule another time in process to meet with the Board regarding questions or comments. Ginny Curtis who serves on this Committee participates in this discussion. She notes process is moving slowly by intention so that as much input as possible will be possible for the town and other town boards.
- 7) Ginny Curtis present to request copies of Title V inspection reports for 315 and 320 NW Rd. noting that ownership of these properties passed to Dave Cotton in January of 2014 and that the inspections should have been done at this time. Board has documents related to the construction of a septic system at 315 NW Rd. but not a Title V inspection report required when ownership is tranfered to another party. Board notes it has no records at all on 320 NW Rd. Tom tasked with writing an email to the health agent requiring a copy of these inspections if they were done and if not to order that they conducted. Owner of record is David J Cotton 284 Hatfield St., Northampton, Ma. 01060. Ginny Curtis also presented the Board with copies of citizen appeal to court ordered special permit for Sawmill operations for Maple Dodge Farm,
Correction / Addition # 320 NW Rd. owner of record is
David J. Kim Cotton.

business owned by David Cotton. It is noted that this appeal is under the name of Tim Fondakowski who owns property that abuts the Maple Dodge Farm.

- 8) Board discussed trailer at 112 Main Rd owned by Fred Ulig. Board notes that about a year ago Health Agent spoke with the owners to tell them they could not live in this camping trailer on the property. Problem was resolved for a while but has arisen again. Tom to send email to health agent asking for a follow up visit.
- 9) Ginny Curtis wanted to inform the Board of status of 109 NW Rd. where home construction continues. Some residents feel confused by this activity and the existence of cease and desist order for this construction that was issued by ZBA and subsequently ignored by building inspector/zoning enforcement officer. She notes ZBA subsequently reversed itself on this cease and desist once legal action was threatened by the owner. She also notes that an citizen appeal of these actions have been filed and a meeting will occur on July 19.
- 10) Board did a records search for 5 South Rd. This home was destroyed in a fire. David has been fielding questions from the owner about reusing the septic system for the next home to be built on this property. Board notes that a Greg Newman plan and permitting documents are on file. System is just about 20 years old. Title V inspection report from time when property transferred ownership is also on file. No red flags jump out to the Board in regards to continued use of this system for new home. System sized to three bedrooms and other min. standard requirements. Board notes that it will require an engineer or sanitarian to sign off on functionality of the system and specifics of connecting up to the system, elevations and slope of inlet and any other pertinent details. A official Title V inspection witnessed by the Board notes would certainly be prudent to help identify any problems in advance of seeking building permit. Owner was supposed to come in for this meeting but did not show up.
- 11) Mary Powers of NW Rd. present to complain of the smell of burning trash at her house at times. Not a constant thing but a steady and occasional basis. Board notes that burning trash is against solid waste regulations, but wonders about enforcement when the activity is intermittent and difficult to locate source of the smell.

Permit
David Bell